

10. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. NATALIA HOWARD
***HEARING ON MOTION IN RE: TO TAX COSTS**
FILED BY: HOWARD, NATALIA
TENTATIVE RULING:

A notice of appeal has been filed by Defendant Howard in this case. No stay has been issued. The Court continues this hearing, *sua sponte*, to October 14, 2026 at 9:00 a.m. No appearance is required at the hearing on August 19, 2026.

11. 9:00 AM CASE NUMBER: C24-03021
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
***HEARING ON MOTION IN RE: STAY ALL CIVIL PROCEEDINGS PENDING RELATED CRIMINAL PROCEEDINGS**
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Defendant Khaled Ahmad Abukeshek's Motion to Stay All Civil Proceedings pending the related criminal action is unopposed and is **granted**. This matter is stayed. The Court will execute the proposed order lodged on March 9, 2026. No appearance is required at the hearing on August 19, 2026.

12. 9:00 AM CASE NUMBER: C25-00909
CASE NAME: JANE DOE S.V. VS. ANTHONY VERTOLOMO
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: JOHN O MILLER, III
FILED BY: WATCHTOWER BIBLE AND TRACT SOCIETY OF NEW YORK, INC.,
TENTATIVE RULING:

The application of John O. Miller III for admission pro hac vice is **granted**.

13. 9:00 AM CASE NUMBER: C25-01221
CASE NAME: KOREY DEHART VS. DOES 1 TO 100
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: VAN DE POL ENTERPRISES, INC.
***TENTATIVE RULING**

Cross-defendant Van De Pol Enterprises, Inc. demurs to the cross-complaint of defendant and cross-complainant M.C. LLC dba Jiffy Lube, sued as M.C. LLC. Cross-Defendant challenges all six causes of action asserted by Cross-Complainant in the Cross-Complaint.

For the reasons discussed below, the Court **SUSTAINS** Cross-Defendant's demurrer to the Cross-Complaint in full, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC 3.1320(g).)

Although the Court provides a detailed analysis, this is really a quite straightforward, simple matter. It has been made complicated, frankly, by the unprofessional overlawyering of both sides, costing their respective clients needless money, and costing themselves and the Court needless labor. The heart of the problem is simple: Both sides agree that the Cross-Complaint is barred unless it alleges a pre-injury indemnification agreement. The agreement alleged in the Cross-Complaint is post-injury. On one side, Cross-Complainant has made an editorial or clerical error in the date of the agreement it adduces. On the other hand, Cross-Defendant is apparently fully aware that Cross-Complainant can allege a pre-injury agreement; the 2024 agreement alleged is, apparently, a periodic renewal of a pre-2024 agreement that was in place at the time of the injury.

All that was needed here, therefore, was a phone call: “Hey, you alleged the wrong agreement, the renewal rather than the original.” “Did I? Okay, I’ll fix it. I’ll send over a stip.” Instead, Cross-Defendant just ignores that the older agreement can be alleged; and Cross-Complainant earnestly pretends it has already done so.

Everything that follows is the result of the lawyers insisting on a long, overdone demurrer instead of just fixing what both of them knew to be a minor and obvious error. And it follows that, although the lawyers formally met their meet-and-confer obligation, substantively they flunk that test spectacularly.

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Preliminary Points

No judicial notice is necessary as to pleadings in the Court's file.

The Court disregards the Ghantous declaration as attempting to adduce facts not alleged in the cross-complaint. That is not proper on a demurrer.

Background

In the complaint in this matter filed by Plaintiff Korey Ray Dehart, Plaintiff alleges that on May 18, 2023, he was an invitee at 2099 Camino Ramon, San Ramon, California, which is a premises Plaintiff alleges was owned, leased, operated, maintained and/or otherwise controlled by Cross-Complainant. (Complaint, ¶¶ 8, 12, 13.) On that date, Plaintiff slipped and fell and suffered serious injuries, due to liquid or oil or grease that was on the floor causing it to be a slip and fall hazard. (*Id.* at ¶¶ 18, 19.) Plaintiff is suing Cross-Complainant for negligence and premises liability and is seeking more than \$35,000. (Complaint, pp. 4-7.)

The Cross-Complaint, filed on December 16, 2025, alleges that Cross-Complainant is suing Cross-Defendant because it believes that Cross-Defendant is legally responsible for the damages, if any, alleged by Plaintiff in the underlying action. (Cross-Complaint, p. 2.) The Cross-Complaint alleges the following claims against Cross-Defendant: (1) express indemnity; (2) equitable indemnity; (3) contribution; (4) negligence/negligence per se; (5) declaratory relief; and (6) apportionment of fault. (Cross-Complaint, pp. 2-10.)

Cross-Complainant seeks express indemnity, equitable indemnity, apportionment, contribution, equitable contribution, compensatory damages, attorney fees, costs, interest, and a declaration as to the rights, duties, and responsibilities of Cross-Complainant and Cross-Defendants. (Cross-Complaint, pp. 10-11.)

Discussion

First Cause of Action for Express Indemnity

Cross-Defendant argues that Cross-Complainant is unable to assert express indemnity because the agreement it relies on was executed on January 1, 2024, which was after the Plaintiff's May 18, 2023 injuries, and that Labor Code section 3864 thus bars this claim. (Demurrer MPA, p. 5.)

Cross-Complainant argues that Cross-Defendant entered into a pre-injury agreement that bars it from the exclusive remedy provisions of the Labor Code. (Opposition, pp. 4-6.) Cross-Complainant's opposition relies on exhibits 1, 2, and 3 to its declaration in support of the Opposition for its argument. (*Ibid.*) These exhibits include a tender of defense and indemnity letter, a response to the tender request, and some meet and confer emails. (Ghantous Decl. ISO Opposition, Exhs. 1-3.)

Cross-Defendant contends that Cross-Complainant's reliance on extraneous documents and facts not pleaded in the Cross-Complaint is improper and should be disregarded and that the Cross-Complaint does not allege a pre-injury written agreement, so it fails to satisfy the limited exception to Labor

Code section 3864. (Reply, pp. 2-4.)

Labor Code section 3864, provides:

If an action as provided in this chapter prosecuted by the employee, the employer, or both jointly against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury.

(Lab. Code, § 3864.)

Here, Plaintiff was injured while employed for Cross-Defendant and the Cross-Complaint only references an agreement that was executed on January 1, 2024, which is subsequent to the date Plaintiff was injured, May 18, 2023. (Cross-Complaint, ¶¶ 3, 8.)

Cross-Complainant's attempt to rely on meet and confer correspondence and letters sent between the parties is unavailing as those are outside the scope of what a court considers when deciding a demurrer. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7 [Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice."]) Here, the Court is unable to rely on the declaration of Karyne T. Ghantous in support of the Opposition as it contains documents and facts outside the Cross-Complaint or matters that may be inferred or judicially noticed. Cross-Complainant asserts that the meet and confer letters may be judicially noticed and that other letters it has attached to the declaration may be judicially noticed (Opposition, pp. 3-4), however, Cross-Complainant has not requested judicial notice of any documents in connection with its opposition and the Court is not aware of any authority that would allow it to consider meet and confer correspondence or indemnity requests and responses that are not attached to the Cross-Complaint.

Based on the allegations of the Cross-Complaint, which allege a January 1, 2024 express indemnity agreement, and the fact that Plaintiff was injured in May of 2023, Cross-Complainant's express indemnity claim is barred due to Section 3864 of the Labor Code.

In light of the analysis above, Cross-Defendant's demurrer to Cross-Complainant's first cause of action for express indemnity is SUSTAINED.

Second Cause of Action for Equitable Indemnity, Third Cause of Action for Contribution, Sixth Cause of Action for Apportionment of Fault

Cross-Defendant argues that "Section 3864 unequivocally forecloses any recovery by MC for equitable indemnity from VDP." (Demurrer MPA, p. 6.) Cross-Defendant further contends that "Section 3864 clearly bars MC from recovering contribution from VDP." (*Id.* at p. 7.) Regarding apportionment of fault, Cross-Defendant argues that "[b]ecause section 3864 precludes a third party tortfeasor from

seeking indemnification and contribution from an injured employee's employer, it also bars the third party from seeking apportionment from the employer under the doctrine of comparative negligence." (*Id.* at p. 9.)

Cross-Complainant does not offer argument on specific causes of action, but argues that if there is a pre-injury agreement, like there is here, then the claims outside of the claim for express indemnity can go on. (Opposition, pp. 6-10.) It further argues that the purpose of Section 3864 is to eliminate a third party's right to implied or equitable indemnity against an employer when no contractual relationship exists, but with a pre-injury agreement in play, the statute has no application at all. (*Id.* at p. 7.) Cross-Complainant also argues that Section 3864 "cannot function as a grounds for demurrer."

First, Section 3864 can function as the grounds for a demurrer. (*Nielsen Construction Co. v. International Iron Products* (1993) 18 Cal.App.4th 863, 869 ["We conclude the written indemnity agreement was not timely executed pursuant to section 3864 because the written agreement was not signed by both parties before the injury occurred. The trial court properly sustained International's demurrer without leave to amend. . .".])

Second, Labor Code section 3864 is clear. "If an action as provided in this chapter prosecuted by the employee . . . against the third person results in judgment against such third person, or settlement by such third person, the employer shall have no liability to reimburse or hold such third person harmless on such judgment or settlement in absence of a written agreement so to do executed prior to the injury." (Lab. Code, § 3864.) Here, an employee of Cross-Defendant, Plaintiff, alleges he was injured while working and has sued third party, Cross-Complainant, for damages. (Complaint, pp. 1-7.) Cross-Complainant has now sued Plaintiff's employer seeking reimbursement for any possible damages Plaintiff may obtain from it. (Cross-Complaint, pp. 1-11.) All of Cross-Complainant's claims seek some form of payment to it assuming Plaintiff's lawsuit is successful. This is plainly governed by Labor Code section 3864. Absent a written agreement executed prior to the injury, claims such as Cross-Complainant makes here are barred. (Lab. Code, § 3864.) Cross-Complainant, in a seeming admission that the Cross-Complaint cannot stand on its own, has submitted with its opposition a declaration containing communications, letters, and evidence that is beyond the scope of what this Court can consider on a demurrer. (Ghantous Decl. ISO Opposition, ¶¶ 1-7, Exhs. 1-3.) Because the Cross-Complaint only alleges an executed agreement dated January 1, 2024, and Plaintiff's injury occurred in 2023, Cross-Complainant's attempts to be reimbursed for any judgment must fail.

In light of the analysis above, Cross-Defendant's demurrer to the Cross-Complaint's second cause of action for equitable indemnity, third cause of action for contribution, and sixth cause of action for apportionment of fault is SUSTAINED.

Fourth Cause of Action for Negligence/Negligence Per Se

"The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) "The elements of a cause of action for premises

liability are the same as those for negligence: duty, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.)

In addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant has not alleged an injury.

Cross-Defendant’s demurrer to Cross-Complaint’s fourth cause of action for negligence-negligence per se is SUSTAINED.

Fifth Cause of Action for Declaratory Relief

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another . . . in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.

Here, in addition to the reasons identified above as to the second, third and sixth causes of action, this claim also fails because Cross-Complainant is not seeking a declaration of its rights or duties under any written instrument or contract but rather seeks an adjudication as to the respective fault of the parties as to Plaintiff’s claims. (Cross-Complaint, ¶¶ 29, 32 [“Cross-Complainant requests an adjudication and determination of the respective proportions of percentage of fault of all parties to this action, if any.”].) This goes beyond just analyzing a written instrument or contract and determining respective rights and responsibilities and would involve adjudication of Plaintiff’s case in chief.

Cross-Defendant’s demurrer to Cross-Complaint’s fifth cause of action for declaratory relief is SUSTAINED.

Ruling

The Court **SUSTAINS** Cross-Defendant’s demurrer to the Cross-Complaint in full, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)